Subject: Public Participation - Government Speech and Resident Access to Town Infrastructure
From: Stephen Harrington <sth.alist@gmail.com>
Date: 10/5/26, 15:27
To: Stephen Harrington <stephenharrington@yahoo.com>

Good evening. Last week I asked where the Moderator's authority comes from to bind residents using Town infrastructure. Tonight I want to address a related question: **whose speech is actually being carried through that infrastructure?**

The Moderator has described the TMM Email List and Annotated Warrant as a Town service and a Town function, while also saying they are not a public forum. The Town Manager has separately said that neither he nor this Board can direct the Moderator concerning these rules.

Those statements do not resolve the underlying issue.

The archive does not contain only Town reports, motions, or official notices. Since 2022, it has increasingly carried letters, statements, presentations, and political advocacy expressly attributed to identifiable individuals supporting or opposing pending warrant articles.

Calling the system a Town function does not answer whether those private letters become the Town's own speech merely because Town staff receive, distribute, and archive them.

So I am asking Chairman Hurd to request Town Counsel state the Town's position clearly.

Does Arlington contend that privately authored political advocacy published through this system is government speech of the Town?

If not, what is it?

And if the Town's position is that the Moderator alone may establish access policy for this Town infrastructure, please say so—and identify the statute, bylaw, Town Meeting vote, or delegation that gives that office policymaking authority over residents outside Town Meeting proceedings.

Administration of a Town system is not itself the source of authority to make binding policy for residents.

I am not asking this Board to litigate constitutional doctrine tonight.

I am asking the Town to identify whose speech this is, who has authority to regulate access to it, and what law gives that official the power to do so.